

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A., and on her behalf her father B.B.B. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on 06/06/2022. The complaint is directed against EL CORTE INGLÉS, S.A., with NIF A28017895 (hereinafter, the respondent or ECI). The claimant states the following facts:

Her daughter, a minor, suffered a fall on Friday 08/10/2021, around 20:00 hours, at the ECI shopping center located in ***LOCALIDAD.1, as a result of slipping and hitting a sharp-edged platform, for which she was assisted at the establishment's first aid station and at a hospital.

In order to find a solution amicably, on 13/10/2021, the claimant sent an initial email to the address provided by ECI's Customer Service in ***LOCALIDAD.1 (****EMAIL.1"), in which she expressly requested the preservation of the images recorded by the security cameras of her daughter's fall, in case it was necessary to present them as documentation should she be obliged to resort to judicial proceedings, in addition to compensation for the damages caused, attaching photographs of her daughter's injuries, a medical report, and photographs of the incident area.

Due to the lack of response, on 01/11/2021, she contacted ECI in ***LOCALIDAD.1 again by phone, which informed her about the upcoming sending of a letter from the Insurance Department. On the same day, the claimant sent another email to the respondent warning about the lack of response to her request and expressly requesting "the preservation and sending" of the "recording from the security cameras of my daughter's fall."

She adds that on 05/11/2021, the insurance company sent her a letter by email rejecting the compensation request and that, on the same day, she sent several emails in which she expressly requested that the recording from the security cameras of her daughter's fall be sent to her.

On the same date, ECI's insurance company responded that it could not provide any copy of the recordings "in compliance with the Data Protection Law" and, on 12/11/2021, ECI replied that in the area where the events occurred, there are no surveillance cameras, "therefore, there are no images of the incident you are reporting."

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Subsequently, as indicated by the claimant, on 18/11/2021, ECI responded to a request from the claimant for the "nearby recordings," informing them that the images are retained for 7/15 days, after which the requested recordings were automatically deleted.

The claimant attached to their complaint, in addition to photographs of the injuries suffered by the minor and the Clinical Emergency Report, a document compiling the correspondence maintained via email with ECI and the insurance company of this entity (the content of these emails is noted in the Established Facts numbers 3, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, and 18).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the defendant party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 15/06/2022 as noted in the acknowledgment of receipt in the file.

On 21/07/2022, this Agency received a response letter from ECI, in which it confirms having received the emails sent by the claimant on 13/10 and 05/11/2021, in which the claimant requested the preservation and copy of the images that may have been captured of the events that occurred on

08/10/2021, and the subsequent email of 18/11/2021, in which the claimant requested the recordings from 08/10/2021 from those cameras that were located near the place where the incident occurred. It also informs about the emails sent in response to those requests, specifically noting the responses of 01/11/2021, in which it informed the claimant about the sending of documentation to the insurance company; the email of 12/11/2021, informing that there are no cameras focusing on the area where the fall suffered by the claimant's daughter occurred, as the camera installed in that area "does not focus on the location where the minor suffered the fall," therefore there are no images of the incident; and the response of 22/11/2021, also sent via email, regarding the non-existence of images from the cameras near the place of the fall, as those that may have captured the incident were deleted in compliance with the current regulations on the matter. In this last email, it is stated that the installed recording system has limited capacity, so the captured images are retained for a period of 7/15 days and after that period are automatically deleted.

In summary, ECI believes that it responded in a timely and appropriate manner to the requests made by the claimant, and justified the impossibility of fulfilling them. According to this entity, it complied with the obligation to address the requests, even though the outcome was not as expected due to the absence of recordings of the events.

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With its response, ECI provided copies of the emails referenced in the Established Facts 3, 7, 10, 15, 16, and 18.

THIRD: On 26/07/2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: Once the complaint was admitted for processing, a rights procedure was followed in this Agency, marked with the number PD/00187/2022, to determine whether the entity ECI properly addressed the requests for the exercise of the rights of access and limitation of processing.

For this reason, the responding party was granted a period to submit any arguments it deemed appropriate, receiving a written response through its Data Protection Delegate, which outlines the chronology of events referencing the content of the emails indicated in the First Background with numbers 1, 2, 3, 4, 8, 9, 11, 12, and 14. It adds that, on 27/10/2021, the incident was reported to the insurance company, accompanying the photographs and documents provided by the claimant, including photographs of the area where the incident occurred, in which no camera is visible.

Regarding the response sent by the insurance company to the claimant indicating that it is not possible to provide any recording due to data protection regulations, ECI clarifies that this response may imply that the insurance company itself has images, "a fact that is entirely incorrect since the entity responsible for processing the images is El Corte Inglés, and at no time are they provided to a third party, as we have repeatedly stated, such images do not exist since in the area of 'bathroom curtains of ***CENTER.1 of ***LOCATION.1 there is no camera focusing on that area. On the other hand, the insurer ***INSURER.1 itself confirms and certifies in a written statement dated July 29, 2022, that it does not have any recording related to the incident that occurred, and that by mistake a generic response was provided to the client that they usually use with those who request this type of recordings."

Furthermore, regarding the issue of the maximum retention period, established as one month, the responding party reminds that "except in those cases where images must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. This is not the case at hand, as the adjacent cameras did not capture any image or situation in which an incident affecting persons, property, or the facility itself occurred. In this regard, since the images of the events of October 8 correspond to a time more than 30 days ago, in compliance with Article 22.3 of the LOPDGDD concerning the retention of images captured by video surveillance systems, they were deleted."

The mentioned entity concludes that it responded to the "rights of limitation and access" on

12/11/2021, informing that there is no image in the area where the incident occurred, where there is no camera, thus demonstrating compliance with the provisions of Articles 15 and 18 of the GDPR, and 12.3 of the same.

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Regulation, having responded to the interested party in a timely manner.

With its response, ECI provided a copy of emails and a document submitted by ECI's insurance company, dated 29/07/2022, referenced in the Proven Facts 4, 5, and 19.

It also includes a situational plan of the cameras installed in the establishment in question, where it can be seen, according to ECI, that there is no camera in the location where the events occurred nor within the focus range of the nearby cameras. This plan marks the "incident zone," as well as the nearby surveillance cameras and their "usual viewing area." According to this plan, there is no camera in the accident area, and none of the nearby cameras focus on that area.

Additionally, a screenshot related to the configuration of the image retention period is provided, showing the selected option of "Automatic deletion. 15 days" and "End of disk mode. Overwrite." These allegations were communicated to the claiming party, who submitted a written statement questioning the account of the events provided by ECI, denying that their right of access was addressed.

In this document, the claiming party warns that they initiated another procedure to claim damages caused by the lack of maintenance in good usage conditions of the establishment's flooring, which is why they intended to access the images; and insists on the existence of cameras that could have captured the accident and that those images were provided to the insurance company; as well as on the contradictions present in the allegations of that entity, particularly between what the insurer stated regarding the impossibility of providing the security footage and what ECI later asserted about the non-existence of images.

It concludes by noting that some cameras are missing from the situational plan and provides "photographs of the cameras located right in the area where the incident occurred."

The images provided do not correspond to the area of the shower curtains where the minor fell, but to adjacent areas. The claiming party itself points out, regarding these cameras, the following: "camera 8 meters central hallway," "camera from the gourmet club the shower curtains are behind the column," and "camera 10-12 meters left of the accident."

In light of the allegations made by the parties, on 23/12/2022, a resolution was issued in the indicated rights procedure (PD/00187/2022), in which it was agreed to uphold the claim made regarding the rights of access and limitation of processing exercised by the claiming party and to urge ECI to send that claiming party a certification addressing the cited rights or to deny them with justification, indicating the reasons why the request cannot be granted.

FIFTH: On 11/01/2023, within the period granted to it for the

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compliance with the resolution issued in the rights procedure mentioned in the Fourth Background, the entity ECI provided this AEPD with a copy of the response and documentation sent to the complaining party regarding the rights of access and limitation of processing exercised by the same, as well as proof of the delivery of the email to which this response was attached. In that response, ECI states "the reasons why the requested images could not be provided in the exercise of their rights of limitation and access."

From the content of the aforementioned response, the following is noteworthy: Regarding the right to limitation of processing exercised on 13/10/2021, the respondent party indicates that there are no recordings, as communicated in the response provided to the complaining party on 12/11/2021. According to the entity ECI, the request literally referred to the preservation of the recording from the security cameras of the fall of the complaining party's daughter, which was not recorded by any camera in the center, as there was no camera enabled in the area where the fall occurred. It adds that the documentation sent to the insurance company did not contain image recordings and that the response from this company was made in a generic manner leading to a misunderstanding, as that response implies that they have images in their possession, which is incorrect. In this writing, they state they are attaching a certification from the insurance company confirming the aforementioned and the communications that the complaining party had with said insurer. It concludes by indicating that the insurer does not dismiss the compensation based on recordings.

Regarding the right of access, exercised to request the recordings from the cameras near the location where the incident occurred, the respondent party informs that the recordings were automatically deleted after the configured period (between 7 and 15 days), since the request was made 42 days later.

SIXTH: On 20/04/2023, the General Subdirectorate of Data Inspection accessed information related to the respondent party in "Axesor" ("Monitoring Report"). (...)

SEVENTH: On 17/07/2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent party for the following alleged infringements:

- for the alleged infringement of Article 18 of the GDPR, classified under Article 83.5.b) of the same Regulation, and qualified as very serious for the purposes of prescription in Article 72.1.k) of the LOPDGDD.
- for the alleged infringement of Article 15 of the GDPR, classified under Article 83.5.b) of the same Regulation, and qualified as very serious for the purposes of prescription in Article 72.1.k) of the LOPDGDD.

In the opening agreement, it was determined that the sanction that could correspond, without prejudice to what results from the instruction, would be 70,000 euros (seventy thousand euros) for each of the indicated infringements.

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Furthermore, it was noted that the alleged infringements, if confirmed, could lead to the imposition of measures, according to the aforementioned article 58.2 d) of the GDPR.

EIGHTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, the party being claimed submitted a written statement of allegations in which it requests the filing of the proceedings based on the following considerations:

1. It begins its statement by reproducing the emails referenced in the First Background, indicated in that background with numbers 1, 2, 3, 6 (regarding these emails, it highlights that the request from the claiming party referred to the images of the "fall of their daughter"), 11 (which responds to the email indicated with the number in section 6), 12 (sent more than a month after the event occurred), and 14 (which responds to the email indicated with the number in section 6).

It points out in this regard that it attended to the communications of the client. Regarding the images captured by the cameras adjacent to the location where the events occurred, requested more than a month after the incident, it indicates that they were deleted in compliance with the applicable regulations, as there was no legal reason justifying their exceptional retention, given that there were no images of the fall or its consequences that could be subject to such retention in defense of the

interests and rights of the client.

2. Infringement of the right to the presumption of innocence

Since the images do not exist, no obligation regarding the limitation of processing or access to them could have been breached.

The AEPD considers that such images do exist based on, first, an assumption, and second, an extensive interpretation of the request from the claiming party, both of which are legally incorrect.

On one hand, the initiation agreement of the file, to assert that the images of the child's fall existed, is based on the fact that "the party being claimed and its insurance company responded at all times as if the recordings existed" (the emphasis is ours).

This assumption is supported by the fact that, in an email dated 01/11/2021, "it was indicated to the claiming party that the documentation had been forwarded to the insurer" and that also by email, dated 5/11/2021, the insurance company sent the claiming party an email stating that the images could not be provided "in compliance with the Data Protection Law."

Well, between those foundational facts and the assumption drawn, there is no precise, direct, and conclusive link.

Indeed, the entity stating that it had forwarded "the documentation" to the insurance company does not mean that such documentation included images. This assumption becomes even more inappropriate given that the emails sent by ECI to the insurer on 27/10/2021 were attached.

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part of the incident (transcribed on page 8 of the agreement) and, in them, it is clearly stated that what is sent to the insurer is the documentation submitted to the entity by the claiming party and two additional photos taken by the entity's personnel "to clarify the area of the fall," clarification photos that would have been unnecessary if, indeed, a recording made by the cameras had been submitted as the initiation agreement of this file improperly assumes.

No conclusion can be drawn from the response made by the insurer regarding the fact that the images could not be provided "in compliance with the Data Protection Law," which was a generic and incorrect expression, as recognized by the insurer itself, which is, moreover, a third party distinct from the entity whose statements cannot bind the claimed party.

Additionally, a situational map of the cameras was provided, demonstrating that there was no camera located in a place from which the fall of the girl in the bathroom curtain area of the establishment could have been recorded.

On the other hand, the AEPD makes an extensive interpretation of the request from the claiming party, initially referring to the images of "my daughter's fall." This was requested in the initial email of 13/10/2021, in the subsequent one of 1/11/2021, and in the two sent on 5/11/2021.

When informed that there were no cameras recording in the place where the fall occurred, the claiming party then requested - on 18/11/2021 - the images recorded by cameras "near the area of the incident" in which it could be seen how the girl was attended to by a security guard or the images of her leaving the shopping center, 42 days after the date of the incident (8/10/2021), so those images had already been automatically deleted.

The initiation agreement of the file makes an extensive interpretation of the request from the claiming party, considering that, where it requested the limitation of processing and access to the images "of the fall of her daughter," it should have been understood that this limitation and access was requested for any image that could have been captured of her daughter that day from any camera of the establishment.

This extensive interpretation made by the initiation agreement is clearly contrary to the literal wording of the emails from the claiming party. The latter acknowledges that it had not requested those images from the beginning when, in its email of 18/11/2021, it changes its request and then asks for the images recorded by cameras "near the area of the incident."

On the other hand, the initiation agreement also makes an extensive interpretation regarding the

maximum retention period of the images, interpreting that the claimed entity should have disregarded the maximum period established by law in favor of protecting the right to effective judicial protection. In short, there is no evidence that the images of the girl's fall ever existed, so no infringing behavior can be reproached to the entity.

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According to the entity ECI, asserting the existence of those images based on an unfounded assumption or altering the object of the request through an extensive interpretation of the same is contrary to the presumption of innocence that must be respected in any sanctioning procedure.

3. The data protection regulations are aimed at ensuring the legality of the processing of personal data and not at ensuring effective judicial protection.

The Court of Justice of the European Union (First Chamber), in its Judgment of 04/05/2023, Case 487/21, has declared that “Data subjects must have the right to access personal data collected concerning them and to exercise that right easily and at reasonable intervals, in order to know and verify the lawfulness of the processing.”

Both the regulations and the actions of the AEPD must be directed towards ensuring the lawful processing of personal data.

According to ECI, the claiming party did not exercise their rights to verify that a lawful and legal processing of their personal data was taking place, but rather the intended purpose was to obtain alleged evidence that could be used in a judicial proceeding for claiming damages due to injuries suffered from a fall.

The agreement itself openly acknowledges this on page 16:

“In relation to this issue, it should be considered that the ultimate purpose pursued by not deleting the images requested by the claimant, the holder of the data in question, is to obtain evidence of the causation of damages to her daughter, as a result of an accident that occurred in a center of the claimed party in which she was harmed by possible negligence of that entity.”

While not denying the importance of the right to judicial protection as a fundamental right recognized by Article 24, this party understands that ensuring the effectiveness of that right corresponds to judges and courts, but not to the AEPD.

Therefore, if one person denies another the possibility of obtaining usable evidence in a subsequent judicial process, that obstructive behavior must be assessed in the appropriate manner, but it must be evaluated in a judicial setting, without an administrative authority being responsible for sanctioning the prior potential deletion of evidence.

Certainly, that right to judicial protection cannot be invoked to the extent of seeking to sanction an entity for not violating the legal regulations that govern the maximum retention period. According to the understanding of the initiating agreement of the procedure, the entity should have violated the data protection regulations in its aspect regarding the maximum retention period of images to ensure effective judicial protection for the claiming party: “addressing both initiatives of the claiming party [...] involved the retention of the images, even if that meant exceeding the legal period,” the agreement literally states.

In any case, as there are no images of the fall, there could not have been any impact on the right to judicial protection; nor can ECI's responsibility be determined for the

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recording from cameras that did not capture the incident in question; nor is there any affectation due to the automatic deletion of images requested in a delayed manner.

In the absence of images from the location where the incident occurred that would have recorded the fall, there are no reasons that justify the preservation of the neighboring security cameras solely for the defense of effective judicial protection when, in reality, those images from the neighboring cameras could in no way allow for the determination of either the fact of the fall or the circumstances under which it occurred, thus they

would have had no utility in verifying the extent of the damages (for which the emergency medical report is already available), nor the possible liabilities that could arise from the sustained damages (for which, if applicable, there will be witnesses and reports from the claims handler on behalf of the insurance company).

On the other hand, it is not understood why the Agency considers that the images captured by the neighboring video surveillance cameras constitute valid and adequate evidence for the defense of the claimant's interests, when the reality is that there were no cameras at the location where the incident occurred and regarding the neighboring cameras, as already mentioned, their recordings, had they been preserved (despite there being no legal reasons to justify it), would not have allowed for the determination of the damages suffered by the minor, nor the clarification of the responsibilities that may arise, without prejudice to the violation that making those images available to the claimant could have posed for the rights of third parties.

In summary, images from cameras that did not directly record the fall had no utility for the purposes of effective judicial protection and, certainly, could not justify the entity's failure to comply with the maximum retention periods for images, thereby affecting the right to data protection of many other interested parties.

4. The content of the right of access in the absence of processing.

The right of access in data protection is the right of the individual to address the data controller to know whether their personal data is being processed and, only in the affirmative case, to obtain information regarding the type of processing being carried out.

In this context, the reality of the facts is that, once the request for access and limitation of the processing of the images of the minor's fall was received from their legal guardian (the claimant), the corresponding video surveillance material for the day and time of the incident indicated by them was reviewed. However, no images or recordings were found that captured the incident in question. Therefore, the reason why ECI has not provided such images is simply that they do not exist, as was informed to the claimant in due time and form and as has already been proven before the AEPD.

Consequently, the reality of the facts is that the claimant exercised their right of access and limitation of processing against the respondent with

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Date: October 13, 2021, and this, in due time and form (specifically on November 12, 2021), responded to the rights exercised by the interested party, through written communication sent by email in which it informed the interested party that there were no images of the events that led to the incident.

Since no type of processing has been carried out, no access to the personal data of the affected party can be provided in favor of the holder, nor any limitation on the purpose of a processing that has never occurred.

Therefore, there has been no intention to conceal information, nor can any harm to the effective judicial protection of the affected party even be suggested.

The ECI video surveillance system is designed and configured to cover specific areas and does not record all locations of the stores, so there may be circumstances or specific locations where a particular incident is not recorded, as has happened in this case.

Had it been otherwise, there would have been no inconvenience in providing access to the images as ECI has continuously done, applying the current regulations and internal procedures established at each moment.

5. Late request for access to images from adjacent security cameras.

On November 18, 2021, that is, once the communication was received informing the claiming party that there were no recordings of the incident they inquired about and more than a month had passed since the incident that led to the claim, access was requested to the images from the adjacent security cameras, for the purpose of, we quote verbatim, "seeing a security guard taking my wife a first aid kit to provide initial care to the girl and my daughter leaving the shopping center bleeding along with her mother and her brother, towards the hospital emergency room."

Following the receipt of this new request for the right of access, ECI, in compliance with the current data protection regulations, responded to the interested party within the legally established timeframe, indicating on this occasion that the images that could have been captured through the cameras near the department where the incident occurred (cameras No. 99, 107, and 135) had already been deleted prior to receiving their access request, given that the storage of this recording system has a storage capacity of between 7 and 15 days at most.

To the extent that the adjacent cameras, for which the claiming party inquired more than a month after the incident, did not capture any image or situation in which an incident affecting persons, property, or the facility itself occurred, they were deleted in accordance with the legally established procedures (in this regard, it is pertinent to recall that the retention period for recordings from video surveillance systems, as indicated in instruction 1/2006, is a maximum of one month, except in cases where images must be retained to prove the commission of acts that violate the law).

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integrity of persons, property, or facilities).

In compliance with Article 22.3 of the LOPDGDD regarding the retention of images captured by video surveillance systems, these had already been deleted in due time and form, as there were no reasons justifying their retention in any way.

Evidence has been provided regarding the configuration of the retention period of the video recorder, where it can be seen that the period for archiving the captured images is a maximum of 15 days, since this system records continuously 24 hours a day, which necessitates that the images take up a lot of space and must be deleted within the indicated timeframe, all taking into account that if no incidents are observed in those recordings, these systems are configured to automatically delete the content. It must therefore be taken into account that the claimant only requests access to the security cameras adjacent to the location where the incident occurred, when they are informed that there were no recordings from the security cameras that captured the fall in question. This circumstance is due to the fact that the right to limit processing initially exercised was exclusively reduced to the recordings from the location where the fall occurred.

What certainly cannot be done or intended is that, in the absence of a recording of the incident in question, my client stores and, consequently, limits the processing of recordings from all the security cameras in the building in anticipation of the possibility that the claimant might request other recordings from locations different from those where the incident occurred (especially when what was requested at the time was the preservation of the recordings of the fall of their daughter). This cannot be an obligation that can be demanded from ECI, which cannot foresee the specific requests for rights that any of its thousands of daily clients may make in an untimely manner in the future. To claim that, subject to an exercise of the right to limit processing reduced to the recordings captured by security cameras where the incident occurred (recordings "of my daughter's fall"), all images from the security cameras of the building captured on that date be provisionally retained is a demand devoid of all reason, absolutely disproportionate, and that, certainly, has no justification nor can it have in the defense of the effective judicial protection of the claimant or their daughter.

6. Regarding the requirement for a double individualized response to each of the exercised rights.

The AEPD unjustifiably reproaches that it was not clarified to which request it was referring in the response, since the only request made by the claimant had been expressly for the preservation of the

images of the fall suffered by the minor, a matter to which a response was provided at all times. The claimant was informed at all times of the situation and the actions taken by ECI, which attended to the requests made by the client.

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Therefore, on 27/10/2021, the insurance company was informed of the incident that occurred at the center, in order to carry out an assessment regarding the possible compensation for damages, in accordance with the client's request.

Similarly, on a second occasion, on 12/11/2021, a response was provided to the right of access exercised by the client, and they were informed about the non-existence of the requested images related to the day the incident occurred.

This response is perfectly valid to address the exercised rights, both of limitation of processing and access, as the same reason (non-existence of recordings) resolves both, and is appropriate to the content of the last request from the claimant, dated 01/11/2021, in which they themselves unify the two requests, referring to it as "preservation and sending of the recording."

Therefore, the fact that the response is unique to the two evidently related requests does not contradict its specificity to what was requested.

7. Regarding the unjustified application of aggravating factors.

In the case at hand, the first aggravating factor applied has been that related to the "nature and severity of the infringement and the level of damages suffered."

In this regard, the initiation agreement understands that the definitive deletion of the images limited the possibility of remedying the lack of attention to the right and harmed the claimant's ability to defend themselves.

It should be noted that the alleged improper deletion of the images constitutes the infringing act, so the devaluation of the infringing type cannot be considered, in addition, as an aggravating circumstance.

The second circumstance considered in the agreement as an aggravating factor is related to the "intentionality or negligence in the infringement." In this case, the agreement understands that there was no intentionality but "negligence" ("these circumstances demonstrate negligent conduct..." it states on page 21/26), but, nevertheless, it is negatively assessed as an aggravating factor, understanding that "a company that systematically and continuously processes data must exercise extreme care in fulfilling its obligations regarding data protection."

This party understands that it is contradictory to assess the concurrence of negligence as an aggravating circumstance when the subjective element (negligence or intentionality) is something that must be present, by definition, in every infringement.

Therefore, this circumstance may be assessed to grade the infringement to aggravate it when there has been "intentionality," which is the more serious conduct, or to mitigate it when what has occurred has been "negligence," which is the less serious conduct.

In the case at hand, the agreement considers that the entity is a company that systematically and continuously processes data, so the degree of

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The required diligence is greater. Well, this condition of being a large company can never be a condition per se that aggravates the infringement. It may be considered as a relevant circumstance for measuring the required diligence. However, once that circumstance is assessed and it is concluded that the conduct has been negligent and not intentional, that negligence (the lowest degree of the subjective element) cannot be considered as a circumstance that aggravates the infringement instead of mitigating it.

The same conclusion can be drawn regarding the circumstance related to "the connection of the infringer's activity with the processing of personal data." The initiation agreement identifies the same circumstance previously mentioned (the systematic and continuous processing of data) but uses another expression (the connection of the activity with the processing of personal data) and treats them as if they were two different aggravating factors.

As previously stated, the greater or lesser connection with data processing may be a parameter for measuring the required diligence but cannot be considered an aggravating factor in itself. Otherwise, an entity like ECI would inherently carry this aggravating circumstance regardless of the infringement committed, regardless of the diligence exercised in the specific case, and regardless of the diligence exercised in general in its mode of operation.

It should not be forgotten that these types of entities, precisely because of their greater connection with data processing, have specific security measures, internal regulations, policies, and action protocols that other entities do not have.

Finally, it is assessed as a negative circumstance "the categories of personal data affected by the infringement." The initiation agreement, despite recognizing that the affected data does not fall within the special categories of data, understands that, in this case, the affected data were "especially sensitive" "because it allows for the prompt identification of the data subjects and increases the risks to their privacy." Well, this risk (that the data allows for the prompt identification of the data subjects increasing the risk to their privacy) could make sense if the infringement had consisted of an improper transfer of data, but never in an infringement that consists, precisely, of the deletion of images which, by definition, prevents the risk of identification and the possible impact on privacy.

NINTH: On 15/03/2024, during the trial phase, the claim filed and its documentation were deemed reproduced for evidentiary purposes, as well as the documents obtained and generated during the admission phase of the claim; and the allegations to the initiation agreement of the sanctioning procedure made by the entity ECI and the accompanying documentation were considered presented. On the other hand, it was agreed to incorporate into the present sanctioning procedure the written allegations submitted by the entity ECI during the processing of the rights procedure marked with the number PD/00187/2022, on 03/08/2022, which includes, in addition to copies of the emails mentioned in the proven facts 4 and 5 and the document provided by ECI's insurance company, dated 29/07/2022, mentioned in Proven Fact 19, the following documentation:

- Layout of the location of the cameras installed in the ECI establishment at C/ Jorge Juan, 6

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***LOCATION.1, where the "incident zone" (fall of the claimant on 08/10/2021) is marked, as well as the nearby surveillance cameras and their "usual viewing area."

- Screenshot regarding the configuration of the image retention period, showing the selected option of "Automatic deletion. 15 days" and "End of disk mode. Overwrite."

Furthermore, it was agreed to request the entity ECI to provide the following information and/or documentation concerning its center located in ***LOCATION.1 and the installed surveillance system:

- Plan of the center, indicating the location where the fall suffered by the claimant occurred on 08/10/2021, as well as the location of the first aid kit and the exits, showing the route that the claimant should have taken from the place of the fall to access the first aid kit and subsequently to exit the center.

- Indicate the number of cameras in the surveillance system installed at the ECI center in

***LOCATION.1, providing a plan that shows the location and viewing angle of all the cameras located on the floor of the center where the fall suffered by the claimant occurred, all cameras near the first aid kit, cameras near all exits, and those located on all possible routes that the claimant could have taken from the place of the fall to access the first aid kit and subsequently to the exit. The type, brand, and model of the installed cameras should be indicated, along with details of their technical specifications.

Finally, ECI was requested to inform this Agency whether, upon receiving the request for the exercise

of rights made by the claimant, it verified the existence of images of her daughter, accompanied by her mother and a security guard from the center, captured by the surveillance cameras adjacent to the location where the fall suffered by the minor occurred or cameras near the first aid kit and exits; or by any other camera in the center. In the event that the response was affirmative, a report on the results of those verifications was requested.

From what ECI stated in response to these requests, the following should be highlighted:

- The center does not have a medical service to which the daughter of the claimant was taken accompanied by her mother.

(...)

- Regarding the verification of images captured by cameras adjacent to the incident location, it indicates that the communication from the claimant dated 13/10/2021 referred to the images of the fall suffered by her daughter, so the existence or non-existence of these images was verified, determining that there were no images of the accident.

It provides a plan of the center (ground floor), where the location of the fall is marked, the route to the exit door, the location of

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the cameras with their corresponding numbering and angle of view. Observing the provided plan, it is verified that the route from the accident location to the exit of the center, which is quite long, has at least twelve cameras installed in its vicinity, some directly over the route itself. However, according to the indications on the plan, the angle of view of most of them does not allow for certainty that the cameras could have captured images of the claimant's daughter accompanied by her mother and a security guard from the center, except for camera number 110, which is oriented towards the route outlined in the plan, and the one installed at the entrance/exit of the establishment (camera 55), located directly in front of the exit, which certainly must have captured images of the individuals as they left the location.

The same plan shows that there are several routes to reach the exit from the location where the accident occurred, along which there are other cameras that could also have captured the aforementioned individuals during their departure from the establishment (those marked with numbers 131, 14, 18, or 105).

TENTH: On 16/04/2024, a resolution proposal was made suggesting that the Director of the Spanish Agency for Data Protection sanction the entity ECI with the following fines:

- for the infringement of Article 18 of the GDPR, classified under Article 83.5.b) of the same Regulation, and qualified as very serious for the purposes of prescription under Article 72.1.k) of the LOPDGDD, a fine of 70,000 euros (seventy thousand euros).

- for the infringement of Article 15 of the GDPR, classified under Article 83.5.b) of the same Regulation, and qualified as very serious for the purposes of prescription under Article 72.1.k) of the LOPDGDD, a fine of 70,000 euros (seventy thousand euros).

It was also proposed that ECI be required to adopt the necessary measures within three months to adjust its actions to the personal data protection regulations, as expressed in the Legal Basis VII of the resolution proposal, and to inform the AEPD of the measures adopted within the same timeframe.

The notification of this resolution proposal was duly delivered to the respondent party on 17/04/2024 via electronic appearance at the AEPD's Electronic Headquarters, granting them a period to submit allegations.

ELEVENTH: On 30/04/2024, a written statement of allegations regarding the resolution proposal was received in which ECI essentially reiterates its previous allegations and again requests the dismissal of the proceedings. From what is stated in this document, the following should be highlighted:

1. Non-existence of images whose preservation was requested by the claimant. Absence of violation of the right to limit processing.

The Agency has considered that the request made by the claimant for the preservation of the images "of her daughter's fall" referred to all images in which her daughter appeared that day and that, in any case, if there were doubts about the scope of the request, ECI should have consulted the respondent party regarding this matter.

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On the other hand, ECI considers that the request was clear regarding its object and that only the images of the fall in question were literally requested, which was not recorded, so it was not necessary to address the claimant to define the actual scope of the request. This was requested in the initial email of 13/10/2021, in the subsequent one of 01/11/2021, and in the two sent on 05/11/2021. ECI requests that the AEPD clarify for how long and with what scope and purpose the images from that day should have been retained, as well as the legal reason that would justify it, since such images are, in essence, not linked to the fall in question.

ECI responded to the request within the established timeframe, confirming to the claimant that there were no recordings of the fall as there were no cameras focusing on the area where it occurred.

The fact that subsequently the claimant requested access to the recordings from the adjacent security cameras and the entrances to the establishment reinforces the expressed interpretation, which does not change due to the fact that the claimant used the plural when referring to the "security cameras" that would have recorded the fall. This plural does not imply that the claimant was implicitly requesting that other recordings capturing different images of her daughter that day be retained.

Only when the claimant was informed that there were no cameras recording the location where the fall occurred did she request - on 18/11/2021 - the images recorded by cameras "near the area of the incident" where it could be seen how the girl was attended to by a security guard or the images of her leaving the shopping center, which had been automatically deleted after 15 days, as programmed.

The reality, according to ECI, is that there is no evidence that the images of the girl's fall ever existed, so no infringing behavior can be reproached.

Altering the object of the request through an extensive, disproportionate interpretation is contrary to the presumption of innocence.

On the other hand, it points out that having clarified that the purpose of the request is to retain the images in case they need to be provided in judicial proceedings and the absence of images from the location where the incident occurred, there are no reasons that justify the retention of the images recorded by the adjacent security cameras, which would not allow determining the extent of the damages (for which the emergency medical report is already available), nor the possible responsibilities that could arise from the damages suffered (for which, if applicable, there will be witnesses and reports from the claims handler on behalf of the insurance company).

The proposed resolution seems to aim for the retention, more than a month after the incident, of the images from the security cameras, almost from the entire building, in case any evidence could be extracted from them that would allow for the defense of the interests and rights of the claimant in judicial proceedings, which is contrary to the presumption of innocence.

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to the law and disproportionate to the pursued purpose. Furthermore, if that had been the intention of the claiming party, they should have requested the preservation of all recordings from the security cameras in which their daughter appeared at any moment that day.

To determine the content and scope of the request, the definition of the term "fall" provided by the Dictionary of the Royal Spanish Academy is illustrative: "the action and effect of falling." The request referred to the recordings of the action, that is, the moment when the daughter fell. It is precisely that action and its effects that are the only matters of interest for determining the causes and responsibilities that could arise from the damages.

It seems obvious that when the claimant is asking for the preservation and access to the recordings of the fall, what they intended was to preserve and access the recordings of the moment when their

daughter fell and not any other previous or subsequent recordings from different angles than the location where the incident occurred.

If the claiming party had wanted the recordings from adjacent cameras or from all those that had recorded their daughter at any moment to be preserved, they only needed to request it at the appropriate time, that is, before the recordings were deleted after fifteen days.

2. Regarding the sanction imposed for not responding to the request for the right of access. Violation of the principle of "non bis in idem."

ECI understands that it is not justified to impose two sanctions for the same conduct and based on the same facts, when the reality is that the reason justifying the imposition of the first (non-preservation of the recordings) inevitably implies the imposition of the second (due to the impossibility of granting access to recordings of images that had been deleted after the fifteen-day period).

A duplication of sanctions is imposed in a case with identity of subject, fact, and basis, violating the principle of "non bis in idem." This principle does not allow for a double sanction for the same facts against the same subject when these facts harm the same protected legal interest, as is the case here, and when, moreover, the commission of the first infringement is accompanied by the commission of the second.

3. Regarding the content of the right of access in the absence of processing. Late request for access to images from adjacent security cameras.

On this issue, ECI reiterates what it stated in its previous writings regarding the non-existence of images; the possible confusion that may have been generated by the emails exchanged by the parties and by the insurance company; or that access to the images from the adjacent cameras (cameras No. 99, 107, and 135) was requested more than a month after the incident, when the images that could have been captured had already been deleted in accordance with legally established procedures.

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In this regard, it reiterates that the configuration of the preservation period of the center's video recorder is documented, according to which the images are archived for a maximum period of 15 days, so that if no type of incident is observed in those recordings, the systems are configured to automatically delete the content.

It again highlights that at the very moment it received the first request for the preservation of the images of the accident, it was verified that those images did not exist and informed the claiming party about it, responding to the exercise of rights. Nothing more could be required from the entity being claimed.

Therefore, there has been neither intent to conceal information on the part of my represented party, nor any harm to the effective judicial protection of the affected party.

4. Regarding the estimation of one of the claims of ECI. Absence of reduction of the proposed sanction.

The resolution proposal prepared, despite considering the allegation made by ECI regarding the non-application to the present case of the circumstance relating to the category of personal data affected by the infringement, proposes a fine of 70,000 euros, similar to that indicated in the opening agreement of the procedure. This implies that this estimation has not been taken into account when determining the proposed sanction, violating the principles of legal certainty and prohibition of arbitrariness. If during the sanctioning procedure it is appreciated that one of the aggravating circumstances initially considered should not be taken into account, it seems reasonable to propose a reduction in the amount of the sanction.

From the actions carried out in the present procedure and from the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: On 08/10/2021, at around 20:00 hours, the daughter of the claiming party, a minor, suffered a fall on the ground floor of the ECI shopping center located in ***LOCALIDAD.1, hitting against a platform, which caused injuries to her face for which she was assisted at a hospital.

SECOND: The entity ECI is the owner and responsible for the video surveillance system installed in its shopping center ***CENTRO.1 located in ***LOCALIDAD.1.

The entity ECI has informed that the system has (...).

Regarding the preservation period of the images captured by the video cameras, the configuration of the recording system has selected the option of "(...)".

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It is recorded in the proceedings, submitted by the entity ECI, a plan of the establishment in which the location where the events described in the First Proven Fact ("incident area") is marked, as well as the location of the nearby surveillance cameras and their "usual viewing area." According to this plan, there is no camera in the area of the incident, and none of the nearby cameras focus on that area.

A plan of the center (ground floor) is provided, which marks the location where the fall occurred, the path to the exit door, the location of the cameras with their corresponding numbering and viewing angles. According to this plan, the path from the location of the accident to the exit of the center has at least twelve cameras installed nearby, and it is likely that images of the claimant's daughter accompanied by her mother and a security guard from the center were captured by camera number XXX, which is oriented towards the path outlined in the plan, and the one installed at the entrance/exit of the establishment (camera XX), located directly in front of the exit, which certainly must have captured images of the affected individuals as they left the area.

The same plan shows that there are several routes to reach the exit from the location where the accident occurred, in which there are other cameras that could also have captured the mentioned individuals during their exit from the establishment (those marked with the numbers XXX, XX, XX, or XXX).

THIRD: On 13/10/2021, the claimant sent an email to the entity ECI, to the address "****EMAIL.1", with the following text:

"My daughter... (name and surname), aged X years, suffered a fall last Friday, October 8, 2021, around 20:00 hours at the El Corte Inglés shopping center located in ***LOCALIDAD.1, as a result of slipping and hitting a cutting platform with sharp corners. The impact caused her injuries to the right cheekbone very close to the eye and a cut on the upper part of the nose, initially without consequences for her vision.

Initially, a security guard from El Corte Inglés approached with the first aid kit, and subsequently, the girl was taken to the Emergency Service of the University Hospital of XXXXXXXX in ***LOCALIDAD.1, for examination by a doctor.

In order to find a solution amicably, as indicated in person on Monday, October 11, 2021, by the Customer Service of El Corte Inglés in ***LOCALIDAD.1, I am sending this email requesting the corresponding compensation for the physical and psychological damages caused to... (name and surname of the minor).

Attached I send:

- . Photographs of the injuries sustained after the initial cleaning with the first aid kit of the affected area.
- . Medical report from the Emergency Service.
- . Photograph of the area of the incident, near the entrance of the hypermarket.

I expressly request the preservation of the recording from the security cameras of my daughter's fall, in case it is necessary to provide them as documentation should I be forced to resort to legal action.

Please acknowledge receipt and provide an estimated response time."

This email was forwarded on the same date to the same indicated address, and it is noted that it was read a few minutes after being sent.

FOURTH: On 27/10/2021, the ECI Center in ***LOCALIDAD.1 sent a

email to the "Risk and Insurance Management" of the entity itself, with the following text:

"I am forwarding you a customer complaint email regarding the fall suffered by his daughter in our center. The fall occurred when she hit the base/plinth of the shower curtain display. In another email, I am attaching two more photos that we took to clarify the area of the fall.

The fall was accidental, with no element causing the fall, beyond the base where she fell."

FIFTH: On 27/10/2021, the entity ECI sent an email to its insurance company, with the following text:

"I hereby inform you of the incident that occurred on 08/10/2021 at the center of ***LOCALITY.1.

Attached is the complaint email from the father of the minor, including the medical report and photos of the damages suffered. According to the center, in the attached email, the minor fell hitting herself against the platform located under the shower curtain display in an accidental manner, hitting herself with the edge of it.

We request that you send a refusal letter as indicated by the center."

SIXTH: On 01/11/2021, the claimant sent an email to the entity ECI, to the address "****EMAIL.1", with the following text:

"According to our phone conversation, after the time that has passed, I have still not received a response from El Corte Inglés to my request.

On the other hand, I reiterate my express request for the preservation and sending to this party of the recording from the security cameras of my daughter's fall.

Please acknowledge receipt."

It is noted that this email was read on the same date by the recipient.

SEVENTH: On 01/11/2021, ECI sent an email to the claimant with the following text:

"As we have discussed over the phone, all documentation has been sent to our insurance company, who will contact you via email."

EIGHTH: On 05/11/2021, ECI's insurance company, from the address "****EMAIL.2", sent an email to the claimant, to which a response letter prepared on the same date by the Claims Operations Center of said insurance company is attached, informing the following:

"On behalf of the insurance company of El Corte Inglés and regarding the referenced incident, we regret to inform you that we will not be able to take responsibility for the economic consequences of the same as there is no liability on the part of our insured."

NINTH: On 05/11/2021, the claimant sent an email to ECI's insurance company, to the address "****EMAIL.2", with the following text:

"Upon receiving your communication, please detail the reasons why there is no liability on the part of the insured."

TENTH: On 05/11/2021, the claimant sent an email to the entity ECI, to the address "****EMAIL.1", with the following text:

"Having received a response from the insurance company, once again, I reiterate my express request for the sending to this party of the recording from the security cameras of my daughter's fall."

ELEVENTH: On 05/11/2021, ECI's insurance company, from the address "****EMAIL.2", sent an email to the claimant with the following text:

"The fall occurred accidentally, with no negligence on the part of the insured, and the facilities being in perfect condition, complying with applicable legal regulations."

TWELFTH: On 05/11/2021, the claimant sent an email to ECI's insurance company, with the following text:

"Thank you for the information. I request the sending to this party of the recording from the security cameras of my daughter's fall."

THIRTEENTH: On 05/11/2021, ECI's insurance company sent an email to the claimant with the following text:

"Regarding your request, we regret to inform you that, in compliance with the Data Protection Law, we cannot provide you with any copies of the recordings from the security cameras."

FOURTEENTH: On 05/11/2021, the claimant sent an email to ECI's insurance company, with the following text:

"This is the only way to verify the reasons alleged by ***INSURER.1 and I understand that the other

people appearing in the recording can be pixelated."

FIFTEENTH: On 12/11/2021, ECI sent an email to the claimant with the following text:

"In response to your request, we regret to inform you that, in the area of Shower Curtains in the Textile-home Department of our commercial center in ***LOCALITY.1, we do not have any camera focusing on that area, so there are no images of the incident you are reporting."

SIXTEENTH: On 18/11/2021, the claimant sent an email to the entity ECI, to the address ***EMAIL.1", with the following text:

"Considering your response, I reiterate my express request for the sending to this party of the recording from the security cameras on October 8, 2021, around 20:00 hours at the El Corte Inglés commercial center located in ***LOCALITY.1, near the area of the incident, in which it can be seen:
. A security guard bringing my wife a first aid kit to provide initial care to the girl.
. My daughter leaving the commercial center bleeding along with her mother and brother, towards the hospital emergency room."

SEVENTEENTH: On 18/11/2021, the claimant sent an email...

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electronic to the insurance company of the entity ECI, with the following text:

"After requesting it on several occasions, ***INSURER.1 has refused to provide the recording from all the security cameras on October 8, 2021, around 8:00 PM at the El Corte Inglés shopping center located in ***LOCATION.1, near the area of the incident, in which it can be seen:

. The fall of my daughter.
. A security guard bringing my wife a first aid kit to provide initial care to the girl.
. My daughter leaving the shopping center bleeding along with her mother and brother, heading to the hospital emergency room.

This lack of transparency from the insurance company, from this party's perspective, indicates bad faith and an interest in concealing the existence of a substance/liquid/moisture on the floor in that area at the time of my daughter's fall, which was not signposted, causing her to slip and hit her near the right eye and on the nasal septum, the marks of which still remain on her face.

If within 10 business days I do not receive a proposal to resolve this matter amicably, I will unfortunately be forced to initiate a claim through the judicial route."

EIGHTEENTH: On 11/22/2021, ECI sent the claimant a response email with the following text:

"Regarding your request to send the recordings mentioned in your email of 11/18/21, I inform you that, depending on the storage capacity of the hard drive of the video recorder, the images are stored for 7/15 days, after which they are automatically deleted, so those images were automatically deleted."

NINETEENTH: The insurance company of ECI, through a letter dated 07/29/2022, addressed to the same entity ECI, informs the following:

"In relation to the reference file, we inform you that ***INSURER.1 does not have any recording related to the incident; due to an error, a generic response has been communicated to the client that is usually given to those who request these recordings."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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Responses to the allegations regarding the proposed resolution

1. Non-existence of images whose preservation was requested by the claimant.

Absence of violation of the right to limit processing.

In its allegations to the proposed resolution, ECI reiterates the reasoning it previously presented, without addressing the reasons and arguments evaluated to determine the existence of an infringement. These arguments, reproduced in the Legal Grounds that follow, describe the actions that the entity responsible for processing is obliged to follow to adequately evaluate a request for the exercise of rights, sufficiently respond to the allegations made.

ECI questions the decision of the AEPD, arguing that it results from an extensive and disproportionate interpretation of the claimant's request.

In this regard, it maintains that the request for limitation of processing was clear regarding its object according to its literal expression, understanding that the use of the plural when referring to the "security cameras" that recorded the fall does not imply that the claimant was requesting, without saying so, that other recordings capturing different images of her daughter that day be preserved. It also considers that the claimant's intention was not the preservation of any other image, different from the fall itself, going so far as to assert that those other images are not of interest in determining liability for damages.

In short, ECI bases its entire argument precisely on an interpretation of that request that does not correspond to it, much less in a restrictive sense, as will be well explained later. It even dares to assess whether the images are pertinent or not for the purposes intended by the claimant, whether they allow or not to determine the extent of the damages.

It demands that this Agency clarify for how long and with what scope and purpose the images of that day should have been preserved, as well as the legal reason that would justify it, when all of this is clear.

Once the interest of the claimant is known, the preservation period will extend to all that is necessary to address the rights, and the images must remain available in case the parties exercise possible actions, including the review of the facts that correspond to this Agency in case of a claim and the resolution of the appeals that may be filed against the decisions made in this regard.

The legal reason is precisely that.

The same would apply if the entity ECI itself had decided to preserve the images for a longer time than established for its own defense, in case the claimant had initiated any claim for damages or any other action for liability.

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And this does not mean, as ECI claims, that it is about retaining the images from the security cameras of the entire building, but only those that concern the interested parties, all of them, and not just those that the responsible entity deems appropriate or relevant according to its own assessment of the facts. It is not for them, as stated, to interpret whether the images serve the purposes of the interested parties or whether they are adequate or not for the stated purposes.

Regarding all of the above, it should be noted that the circumstances alleged by ECI concerning the object and scope of the request for limitation of processing do not respond to the issues evaluated in its response to the exercised right, as its action was limited to managing the claim for damages from the claiming party by transferring the request to its insurance company.

On the other hand, although it is already indicated in the following Legal Grounds, it is pertinent here to respond to the allegation raised by ECI in its response to the proposed resolution, according to which the entity understands that it responded appropriately to the request and within the established timeframe.

None of these assertions are true. Examining the actions of the parties, it can be said that if ECI responded to the exercised right, it was due to the insistence of the claiming party, who at all times followed up on their request, and that response was limited to indicating that there were no cameras in the area where the minor fell, without having conducted a true assessment of the request to exercise rights. The account of proven facts even allows for the deduction that the course of events would have been quite different if ECI had responded in a timely and proper manner.

Furthermore, considering that ECI itself established the retention period for the images at fifteen days, the response to the right to limit processing when a month had already passed is understood to have been made out of time. This fact alone is sufficient, in and of itself, to conclude the existence of an infringement.

Finally, it is important to highlight, in response to the allegation regarding the lack of evidence proving the existence of images, that ECI has made no reference in its allegations to the conclusions obtained during the evidentiary phase of this sanctioning procedure.

2. Regarding the sanction imposed for failing to respond to the request for the right of access. Violation of the principle of "non bis in idem."

ECI invokes the principle of "non bis in idem," understanding that the imposition of two sanctions for failing to respond to the rights to limit processing and access to personal data is inappropriate and contrary to law.

However, the failure to attend to the rights to limit processing and access to personal data constitutes separate conduct that harms different legal goods, as set forth in different articles. These behaviors manifest or are consummated at different times, with both deserving of reproach.

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In this case, the triple identity required for the application of non bis in idem is not present, namely, the fact, subject, and legal good protected by the norm.

Furthermore, ECI has indicated that the commission of the first infringement, due to the failure to attend to the right to limit processing, is accompanied by the commission of the second, due to the impossibility of granting access to recordings of images that had been deleted and whose preservation had not been requested.

In this case, the failure to attend to the right to limit processing does not inevitably lead to the commission of the other conduct violating the norm that is being analyzed, that is, the failure to attend to the right of access.

ECI was aware of the claimant's interest in the images subject to the proceedings from the first communication it received from them, in which they reported the incident suffered by their daughter and requested compensation for the damages, regarding which they proposed "to find an amicable solution." In the same communication, the claimant warns about their interest in the images, in case it becomes necessary to resort to judicial means. This implies that, if the amicable solution they seek does not prosper, their intention is to resort to judicial means and provide the images that substantiate the fall suffered by their daughter and the damages caused by it.

To this end, the claimant exercised the right to limit processing so that the images would be preserved. However, the factual premises already justified the non-deletion of the images in question for longer than the established period (15 days), even without the exercise of the right to limit processing. Given the claimant's interest and the reasons for that interest, ECI itself should have ensured the non-deletion of the images to guarantee the possible exercise of the right of access that the claimant could formulate in case the controversy raised was not resolved through an agreement, as the claimant well pointed out in that first communication directed to the responsible entity.

To justify this conclusion, the arguments expressed in the following Legal Basis are fully applicable. Thus, the non-compliance with the provisions of Article 15 of the GDPR, which regulates the right of access, is unrelated to the exercise of the right to limit processing, since, considering the facts that followed that communication, such non-compliance would have occurred equally, to the extent that

ECI limited its actions to managing the compensation request made, by referring the matter to the insurance company, completely ignoring the issue raised regarding the images captured by its video surveillance system and allowing, without further action, the implemented system to take care of the automated deletion of the same due to the mere passage of the conservation period established by the responsible entity itself.

In short, we are faced with two distinct infringements, which do not cause one another.

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Thus, the AEPD does not impose sanctions for the same offense, as claimed by the entity ECI, but rather it has been established through proven facts the commission of two differentiated infringements, classified in a differentiated manner, which correspond to two processes of exercising distinct rights, and there is, moreover, in this specific case, no medial concurrence. This is because in this case, the commission of the infringement of Article 18 of the GDPR does not constitute the necessary means to commit the infringement of Article 15 of the GDPR.

3. Regarding the content of the right of access in the absence of processing.

Late request for access to images from adjacent security cameras.

On this matter, the entity ECI does not raise anything different from the allegations previously stated, which have been sufficiently addressed in the Legal Grounds that follow, reproducing the arguments presented in the resolution proposal, which are considered valid.

However, it is deemed appropriate to highlight that ECI, while referring to the cameras adjacent to the location where the accident occurred, indicating that upon receiving the request it verified that there were no images of the accident, makes no mention of the other cameras that may have captured any images of the affected parties according to the determinations obtained in the evidentiary phase of this procedure. Therefore, it does not deny the existence of these cameras nor the possibility that they may have captured images of interest for the claiming party.

4. Regarding the assessment of one of ECI's claims. Absence of reduction of the proposed sanction.

ECI argues that the resolution proposal considered one of its allegations, so that the circumstance relating to the category of personal data affected by the infringement would not be taken into account in determining the sanction to be imposed, and despite this, the amount of the fine was maintained according to the quantification initially carried out at the time of the initiation of the sanctioning procedure.

However, in its exposition, it omits that the proposal took into account a mitigating factor not considered at the outset, such as "the impact on the rights of minors," as provided in Article 76.2.f) of the LOPDGD, since the present case is related to personal data concerning the daughter of the claiming party, who is a minor.

There is no doubt about the concurrence in this case of this mitigating criterion, nor about the appropriateness of its consideration as an aggravating circumstance, which determines the imposition of a sanction of a higher amount, so that this sanction is proportional to the individual case analyzed. Thus, the proposed sanction has sufficient legal grounds and the actions taken comply with the applicable regulations, so that the principles of prohibition of arbitrariness of public powers and legal certainty cannot be considered violated, to the extent that it is the resolution proposal that establishes the facts that

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are considered proven and their exact legal qualification, as well as the sanction proposed, in accordance with the degree of responsibility attributable to the infringing party and the concurrent

circumstances.

III

Right to restriction of processing. Right of access. Formal aspects related to the exercise of rights.

The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGGDD. The rights of access, rectification, erasure, objection, right to restriction of processing, and right to data portability are contemplated.

Regarding the right to restriction of processing, the GDPR stipulates in Article 18 the following:

“1. The data subject shall have the right to obtain from the controller restriction of processing of personal data when one of the following applies:

a) the data subject contests the accuracy of the personal data, for a period enabling the controller to verify the accuracy of the data;

b) the processing is unlawful and the data subject opposes the erasure of the personal data and requests instead the restriction of their use;

c) the controller no longer needs the personal data for the purposes of processing, but the data subject needs them for the establishment, exercise, or defense of legal claims;

d) the data subject has objected to processing pursuant to Article 21(1), pending the verification of whether the legitimate grounds of the controller override those of the data subject.

2. When the processing of personal data has been restricted under paragraph 1, such data may only be processed, except for storage, with the consent of the data subject or for the establishment, exercise, or defense of legal claims, or to protect the rights of another natural or legal person, or for reasons of substantial public interest of the Union or of a Member State.

3. Any data subject who has obtained restriction of processing under paragraph 1 shall be informed by the controller before the restriction is lifted.”

As the holder of their personal data, the affected data subject may exercise this right to restriction of processing before the controller when one of the specified conditions is met.

Regarding the right of access, the GDPR establishes in Article 15 the following:

“1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning them are being processed and, where that is the case, access to the personal data and the following information:

a) the purposes of the processing;

b) the categories of personal data concerned;

c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;

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d) if possible, the intended retention period for personal data or, if not possible, the criteria used to determine this period;

e) the existence of the right to request from the controller the rectification or deletion of personal data or the limitation of the processing of personal data concerning the data subject, or to object to such processing;

f) the right to lodge a complaint with a supervisory authority;

g) when personal data has not been obtained from the data subject, any available information about its source;

h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the expected consequences of such processing for the data subject.”

2. When personal data is transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards under Article 46 relating to the transfer.

3. The data controller shall provide a copy of the personal data undergoing processing. The controller

may charge a reasonable fee based on administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, and unless the data subject requests otherwise, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.”

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as the information listed in the aforementioned article.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of the rights of the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond without undue delay and, in any case, within one month of receiving the request, unless it can demonstrate that it is unable to identify the data subject, as well as to state its reasons if it does not intend to comply with such request. This means that the information must be provided as soon as possible, so that if it can be provided within a period shorter than one month, the controller must do so. It is understood that, in the event of a retention period, this period must be considered when determining the response time.

The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

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On the other hand, the communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

In general, upon receiving a request to exercise rights, the responsible entity must evaluate it individually to determine its specific content, taking into account that the obligation to facilitate the exercise of the rights of the interested parties, as provided in Article 12.2 of the GDPR, entails that the responsible party grants the broadest possible effect to the exercised right. A restrictive interpretation of the scope of the request made will be avoided, as well as assessing the reasons for which the interested party submits such a request, which in no case can condition the response provided.

This evaluation must first identify the personal data referred to in the request. As a rule, it should be understood that the request refers to all data, unless the interested party clearly specifies otherwise, and this limitation, included in the request, does not raise doubts about the true intention of the interested party that would compel the responsible party to interpret it.

In determining the subject matter referred to in the request, the context in which it occurs, the specific circumstances of the case, and any information that the interested party includes in it may be considered.

The evaluation carried out by the responsible party regarding the content of the request to exercise rights must be clear and unequivocal, always keeping in mind that an average citizen does not know the regulations in detail nor can adequately assess them, given their complexity.

If the request is expressed in very general terms or its subject matter cannot be determined for any reason, the responsible party may not apply limits or restrictions to the exercised right and will be obliged, before responding, to request additional information from the interested party to specify the information or treatments referred to in the request.

The evaluation carried out by the responsible entity must always reflect the situation at the time it received the request, thus ensuring that the response aligns with the information available at that

moment.

Regarding the response time, the responsible party is also obliged to establish procedures that allow requests to be addressed without undue delay, adapting these procedures to the circumstances of the processing. When data is retained for a short period of time, the attention to rights must occur before the data is deleted, avoiding that this deletion takes place during the processing of the request. In these cases, if it is necessary to request additional information from the interested party regarding the subject of their claim, the scheduled deletion of the data must be taken into account, and appropriate measures must be adopted to ensure that it does not occur before addressing the right.

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Thus, if it is not possible to send the required response to the interested party before the scheduled deletion of the personal data, the data must be retained for longer than established or its recovery must have been planned, solely for the purpose in both cases of addressing the right. This processing of data for a period longer than established is covered by the provisions of Article 6.1.c) of the GDPR, as it is “necessary for compliance with a legal obligation applicable to the data controller.”

To understand otherwise would be tantamount to emptying the content of the regulations governing the exercise of rights in the field of personal data protection.

IV

Unfulfilled Obligation. Attention to Requests for the Exercise of Rights

In the present case, the claimant exercised before the respondent the right to limit processing and the right of access to their personal data, in relation to the images captured by the surveillance system installed in a shopping center of the respondent due to a fall suffered by their minor daughter on 08/10/2021.

The actions incorporated into the file confirm that the system captured images related to this incident, if not of the fall itself, at least of the claimant's daughter being attended to by a security guard of the center equipped with a first aid kit, or of the minor accompanied by her mother and said guard heading towards the exit and leaving the center.

Firstly, by email dated 13/10/2021, the claimant explained to the respondent the accident suffered by their daughter and expressly requested “the preservation of the recording from the security cameras of the fall of their daughter,” indicating that they were making this request in case it was necessary to present it as documentation in the event of being obliged to resort to judicial proceedings. The claimant, in relation to their daughter's fall, provided information about the date, time, and place where it occurred, the causes of the fall, and the injuries suffered by the minor; they noted that she was attended to by a security guard of the center, equipped with a first aid kit, and was subsequently taken to a hospital. Furthermore, they proposed an amicable solution to the incident and requested compensation for the damages, providing photographs of the injuries suffered by the minor and of the area where the fall took place.

This request was reiterated on 01/11/2021 (“I reiterate my express request for preservation... of the recording from the security cameras of the fall of my daughter”), due to the lack of response from the respondent (“...I have not yet received a response... to my request”).

In the same email dated 01/11/2021 in which the claimant reiterated that initial request, they also requested access to personal data so that the recording from the security cameras of their daughter's fall could be provided to them (“and sending to this party the recording from the security cameras of the fall of my daughter”).

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As the only response to the previous emails, on 01/11/2021, the entity ECI informed the claimant that the documentation had been sent to its insurance company, which would be the one to contact the interested party, as this company did on 05/11/2021, communicating to the claimant that they could not take on the economic consequences of the incident due to the absence of ECI's liability, stating that the fall occurred accidentally, and that there was no negligence on the part of the defendant as the facilities were in perfect condition.

Upon receiving this statement from the insurer, the claimant reiterated their request for access to the recording to the defendant and to the insurance company through two emails dated 05/11/2021.

The insurer responded on the same date, 05/11/2021, indicating to the claimant that they could not provide any copies of the security camera recordings "in compliance with the Data Protection Law." None of those requests to exercise rights were specifically answered by ECI. That is to say, ECI did not send the claimant a response regarding the rights to limit processing and access to the recordings. Instead, it limited itself to responding via an email dated 12/11/2021 indicating that it was sent "in response to your request," without clarifying which one it referred to. In this response, it informs the claimant that there are no cameras focusing on the area where the girl fell ("Bathroom Curtains area of the Textile-home Department"), "so there are no images of the incident."

Considering the response received, the claimant, on 18/11/2021, requested access to recordings from cameras near that area from the defendant. Specifically, they requested:

"Taking into account your response, I reiterate my express request for the sending to this party of the recording from the security cameras on October 8, 2021, around 20:00 hours at the El Corte Inglés shopping center located in ***LOCALIDAD.1, near the area of the incident, in which it can be seen:

. A security guard bringing my wife a first aid kit to provide initial care to the girl.

. My daughter exiting the shopping center bleeding along with her mother and brother, towards the hospital emergency room."

On the same date, the claimant sent another email to the insurer with a similar request.

The defendant responded to the previous email on 22/11/2021, stating that those images had been "automatically deleted," as they are stored only for a period of between 7 and 15 days.

In summary, on 13/10/2021, three days after the accident suffered by the claimant's daughter, the claimant initially exercised their right to limit processing, as they requested the defendant to preserve the images of their daughter's fall.

There are several aspects that should be highlighted from this request.

On one hand, the request expresses all the details of the incident that occurred, indicating the place, the time, the damages caused, and the reaction of ECI personnel regarding it. Additionally, compensation for the damages suffered is requested, which is substantiated by photographs and the medical report from the Emergency Service that attended to the minor, proposing an amicable solution at the same time.

On the other hand, and more importantly, the same request expresses the intended purpose of exercising this right, which is none other than to guarantee a subsequent exercise of the right of access to the images in question, which is announced in this communication, in case actions for liability are later initiated, as was done against the defendant, and with the aim of going to court if necessary.

Furthermore, the claimant generically requested the preservation of the images from the "security cameras of their daughter's fall." That is to say, not only from the specific area where the accident occurred but any other that was related to the fall.

Based on all of this, it is clear that the entity ECI was fully aware of the context in which the request for preservation of the images of the accident recorded by the surveillance system installed in the center in question was made.

According to the above, this Agency understands that the right to limit processing exercised by the claimant extended to all images that could be captured in relation to the accident, all of which are of interest to the claims of the interested parties. For these purposes, both the images taken of the fall itself and all subsequent images are relevant to substantiate the damages or the initial reaction of the center's responsible parties, for example.

With that scope and purpose, this request for limitation of processing should have been evaluated by

the entity ECI.

In any case, if for this entity this request was not clear regarding the images whose preservation was being requested, it should have reached out to the claimant requesting additional information to clarify its object.

However, ECI's reaction to the exercise of the right was null. It did not request additional information nor did it respond in any way to the right, whether by addressing the request or justifying its dismissal. These actions should have been carried out by ECI before the deadline for preserving the images expired, set by the entity itself at 15 days, as it has reported.

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It is true that the images captured by a video surveillance system must be deleted within a maximum period of one month, in accordance with Article 22 "Processing for Video Surveillance Purposes" of the LOPDGDD, which establishes the following in its section 3:

"3. The data shall be deleted within a maximum period of one month from its capture, unless they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In such cases, the images must be made available to the competent authority within a maximum period of seventy-two hours from the time knowledge of the existence of the recording is obtained. The obligation to block provided for in Article 32 of this organic law shall not apply to these treatments."

On the other hand, as already mentioned, Article 12.3 of the GDPR provides that rights must be addressed without undue delay and, in any case, within one month from the receipt of the request. This means that the information must be provided as soon as possible, so if it can be provided in less than a month, the responsible party must do so.

However, in the event that there is a storage period of less than one month, such a period of retention or storage must be considered when determining the response time to requests for the exercise of rights.

Thus, in this case, when the retention period established by ECI for the images captured by its video surveillance systems (15 days from the date of the accident, which occurred on 08/10/2021) expires, ECI had not sent any communication to the claimant in response to the right concerning data protection, having limited itself to managing the possible compensation for damages by informing its insurance company of the accident that occurred.

Evidence of this is that, when the claimant, via email on 01/11/2021, reiterates their request for the preservation of the images and requests access to the recording from the security cameras, ECI only responds that the documentation had been sent to the insurance company and expressly warns that it would be this company that would contact the interested party, overlooking those requests for the exercise of rights concerning personal data protection.

This generated confusion for the claimant, who thought that the recordings would be provided to them by the insurance company, which is why they contacted the company several times urging attention to their rights. This confusion was exacerbated by the insurance company itself, which responded to the claimant that it was not possible to provide any copy of the recordings "in compliance with the Data Protection Law," despite the fact that there is no record in the file that this company intervened in any way in the processes of addressing rights under the condition of data processor.

On the indicated date of 01/11/2021, the non-compliance with the provisions of Article 18 of the GDPR, which regulates the right to limit processing, had already been consummated.

As previously indicated, ECI did not send any communication to the claimant.

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specific response regarding the right to limit the requested processing. It was not until the date of

12/11/2021 that the entity ECI sent an email informing the interested party that there are no images of the incident, as there was no camera focused on the area where the fall occurred ("Bathroom Curtain Area of the Textile-home Department"). This was after the insurance company informed the interested party that they could not take responsibility for the economic consequences of the incident and after the claimant reiterated their request for access to the recordings.

The same entity ECI, in its allegations, cites this email of 12/11/2021 as the communication that responds to the rights requested by the claimant.

This is an untimely response, as indicated above, and does not resolve the issues raised by the interested party, who saw their rights neglected.

As a consequence of this action, the right of access to the recordings captured by the surveillance cameras could not be properly addressed, despite being announced in the first email sent by the claimant, dated 13/10/2023, and formally requested on 01/11/2021. ECI did not take any action to ensure the attention to this right, to which it only responded on 12/11/2021, after a new communication sent by the claimant to demand a response to the two exercised rights, dated 05/11/2021, indicating that there were no images of the minor's fall.

As far as we know, when the interested party requested a copy of the recordings on 01/11/2021, a request already announced in their email dated 13/10/2023, the images of the incident had already been deleted due to the expiration of the 15-day retention period established by ECI. This occurred despite all the diligence shown by the claimant, who maintained constant communication with the insurance company and with ECI; and as a consequence of the actions of this last entity, responsible for the generated situation, which has totally obstructed the exercise of the claimant's rights.

ECI, knowing the request dated 13/10/2021, should have retained the images captured by its surveillance system or anticipated their retrieval, not only those corresponding to the moment of the fall but all images in which the minor appeared after the incident and until her departure from the center. If the fall could not be captured, the interest in retaining and providing the images taken by any of the installed cameras is even greater.

In light of this conduct by ECI, the access request made by the claimant on 18/11/2021, which expressly refers to the recordings of the images captured by the cameras near the scene of the incident, is irrelevant, as such images are understood to be included in the initial requests. This request arises again as a consequence of ECI's actions and the lack of timely response to the initial request.

In any case, if ECI had acted diligently upon receiving the request, the party

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The claimant would have had the opportunity to clarify the scope of their request and specify its object, noting in their case that it included the images captured by these adjacent cameras.

Therefore, the failure to address the exercised rights is consummated by the lack of response in due time and form.

In short, it cannot be considered that the responding party attended to the right to limit the processing exercised by the claimant, as the request for the preservation of the recordings in question was not adequately answered, which, moreover, should have been preserved in light of the request made.

The same can be said for the right of access, which was also not attended to, as the images from the cameras were deleted. As mentioned, the access request was not limited to the image of the fall itself, but generically to those from the "security cameras" (in plural) of the fall of their daughter. In this regard, the responding party should have taken into account the existence of recorded images from security cameras that could have captured moments following the fall, such as events related to the incident (attention by security personnel, or evacuation of the minor). However, as indicated, the responding party did not preserve those images. This not only violated the right to limit processing, as discussed in the previous section, but also the right of access.

To admit that the responding party has no responsibility for not addressing the rights of the claimant

would be equivalent to admitting that any responsible party for processing could evade the rights of the interested parties, in general, by claiming that the images have been deleted.

The deletion of the images requested by the claimant could be understood as compliant with the provisions of the aforementioned Article 22.3 of the LOPDGDD, as it was carried out within the maximum period of one month from when they were captured. However, in the present case, other circumstances must be considered when evaluating that deletion or erasure of personal data.

The daughter of the claimant suffered an accident in one of the establishments of the responsible entity, and a few days later the claimant reported this fact to said entity, communicating its responsibility in the incident, the damages caused to the claimant, and their intention to be compensated for the accident suffered.

Such circumstances motivated the claimant's interest in obtaining a copy of the images captured by the security camera system installed in the establishment in question, for which they exercised the right to limit processing, demanding the preservation of the recordings, and subsequently access to those recordings; both requests were received by the responding party. In the first of the requests, the claimant communicates that their submission is motivated by the accident that occurred in the center in question.

All of this was known to the responding party.

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These acts are deemed sufficiently indicative of the need to preserve the images, all of them, especially because they were not made available to the claiming party in light of the exercised right of access. Nevertheless, despite all this, the responding party proceeded to delete the images requested by the claiming party.

It is understood that there was an interest on the part of the claiming party that justified the processing of the repeated images beyond the one-month period established by Article 22.3 of the LOPDGDD, at least until the delivery of the images to the claiming party and for this sole purpose.

The same would apply if the claiming party had filed a lawsuit and the responding party had decided to retain the images for the defense of its rights, in which case it would be understood that the data processing would comply with the provisions of Article 6.1.f) of the GDPR (processing is considered lawful when “it is necessary for the purposes of the legitimate interests pursued by the controller”). It was already indicated in the previous Legal Basis that the continuation of processing for a period longer than established is covered by the provisions of Article 6.1.c) of the GDPR, as it is “necessary for compliance with a legal obligation to which the controller is subject.”

In relation to this issue, it should also be considered that the ultimate purpose pursued by not deleting the images requested by the claiming party, the data subject in question, is to obtain evidence of the damages caused to her daughter as a result of an accident that occurred at a center of the responding party in which she was harmed by possible negligence of that entity.

Therefore, it is pertinent to bring to attention the fundamental right to effective judicial protection by judges and courts, contained in Article 24.1 of the Spanish Constitution (“All persons have the right to obtain effective protection from judges and courts in the exercise of their rights and legitimate interests, without any case leading to defenselessness”), which guarantees access for all persons to judges and courts for the defense of their rights.

This right guarantees that the interested party can provide relevant evidence for their defense.

Otherwise, the guarantees derived from the aforementioned right to effective protection would be violated, and the full development of this right would be curtailed.

For all these reasons, from the perspective of this Agency, the recordings should have been preserved once the established period for their deletion was exceeded, which is also covered by Article 24 of the Constitution and its implementing regulations.

In this case, the images captured by the video surveillance cameras constitute valid and adequate evidence for the defense of the interests of the claiming party. In this regard, Law 1/2000, of January 7,

on Civil Procedure, indicates in Article 299 what the means of evidence that may be used in court are.

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establishing in its number 2 the following:

“Means of reproduction of the word, sound, and image, as well as instruments that allow for the archiving and knowledge or reproduction of words, data, figures, and mathematical operations carried out for accounting or other purposes relevant to the process, shall also be admitted, in accordance with the provisions of this Law.”

For its part, Article 265 determines the moment when such documents must be presented, providing the following:

1. To any claim or response, the following must be attached:

1º. The documents on which the parties base their right to the judicial protection they seek.

2º. The means and instruments referred to in section 2 of Article 299, if the claims for protection formulated by the parties are based on them.

(...)

The evidence of the causation of the damages, as well as the determination of the person against whom the claim will be directed, is found in the images captured by the cameras, whose submission to the process with the claim seems necessary.

Regarding the indicated issue, the entity ECI has stated that it is not the responsibility of this Agency to ensure the effectiveness of the right to effective judicial protection. However, what is expressed here consists solely of qualifying a treatment of personal data as lawful.

All this, without forgetting that, in this case, the claiming party requested the preservation of the recordings from the very beginning, so that with this single request, the non-deletion of the images beyond the established period was already justified.

Consequently, attending to both initiatives of the claiming party, both the exercise of the right to limit the processing and the exercise of the right of access to the recordings, involved the preservation of the images, even if this meant exceeding the legal deadline or that determined by the responsible party, resulting in this preservation being in accordance with the principles of necessity and proportionality in this specific case.

It is taken into account that those requests for the exercise of rights were presented to the responsible entity before the images were deleted and that the reasons stated prevail over the obligation to delete the images.

Consequently, in accordance with the evidence presented, the aforementioned facts constitute a violation of the provisions of Articles 18 and 15 of the GDPR, which gives rise to the application of the corrective powers that Article 58 of the aforementioned Regulation grants to the Spanish Agency for Data Protection.

V

Classification and qualification of the infringements

In accordance with the evidence presented, it is considered that the facts exposed violate the provisions of Articles 18 and 15 of the GDPR, which constitutes the commission of two infringements classified in Article 83.5.b) of the same Regulation, which under the heading “General conditions for the imposition of administrative fines” provides the following:

“5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

b) the rights of the data subjects under Articles 12 to 22.”

On the other hand, Article 71 of the LOPDGDD considers any breach of this Organic Law as an infringement:

“Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as

well as those that are contrary to this organic law, constitute infringements.”

Paragraph 1.k) of Article 72 of the LOPDGDD considers, for the purposes of prescription, as “very serious”:

“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:
k) The obstruction or hindrance or the repeated failure to attend to the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679.”

VI

Corrective powers

In the event of an infringement of the provisions of the GDPR, among the corrective powers available to the Spanish Agency for Data Protection, as the supervisory authority, Article 58.2 of said Regulation provides the following:

“2 Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring the processing operations into compliance with the provisions of this Regulation, when appropriate, in a specific manner and within a specified period;

(...)

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case.”

According to the provisions of Article 83.2 of the GDPR, the measure provided for in letter d) above is compatible with the sanction consisting of an administrative fine.

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VII

Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation referred to in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have previously been ordered against the

controller or processor in relation to the same matter, compliance with such measures;

j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the graduated criteria established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

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f) The impact on the rights of minors.

g) To have, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

In this case, considering the seriousness of the established infringements, particularly regarding the consequences that their commission causes to the complaining party, the imposition of a fine is warranted, in addition to the adoption of measures.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Thus, the status of a large enterprise and the turnover of the complained party are considered beforehand (...).

In accordance with the indicated provisions, and in line with the established evidence, for the purpose of determining the amount of the sanctions to be imposed in this case, it is considered appropriate to scale the sanctions according to the following circumstances, as contemplated in the transcribed provisions:

1. Infringement for non-compliance with the provisions of Article 18 of the GDPR, classified in Article 83.5.b) of this Regulation, and qualified as very serious for the purposes of prescription in Article 72.1.k) of the LOPDGDD:

The following circumstances are deemed concurrent:

- Article 83.2.a) of the GDPR: “a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damages suffered.”

- The nature and gravity of the infringement, as the definitive deletion of the images captured by the video surveillance system, which has led to the disregard of the right to limit processing, affects, in this case, the complaining party's ability to exercise true control over their personal data to the extent that it limits their capacity to act in defense of their rights; and limits any subsequent intervention by this Agency in order to remedy the failure to address the right of access or the courts regarding the actions that the complaining party could take against ECI for possible damages.

- The level of damages suffered by the complaining party, to the extent that the deletion of the images has harmed their defense capacity, as expressed in the previous section. The complained party was aware of the request for the preservation of the images made by the complaining party and the

intended purpose of that request.

- Article 83.2.b) of the GDPR: "b) the intentionality or negligence in the infringement."

The negligence observed in the commission of the infringement, considering that the complained party deleted the images despite knowing that the complaining party...

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The claimant reported the accident and the damages suffered to said entity, and requested, for this reason, the preservation of such images. Likewise, the entity ECI limited itself to verifying that there was no surveillance camera at the exact location where the fall suffered by the claimant's daughter occurred, without checking whether there were images related to the accident that could have been captured by any other camera among the many installed in the establishment.

These circumstances reveal the negligent conduct of the responding party. In this regard, the statement made in the Judgment of the National Court of 17/10/2007 (rec. 63/2006) is taken into account, which, starting from the premise that these are entities whose activity involves continuous data processing, indicates that "...the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the offender does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be particularly weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard."

This is a company that systematically and continuously processes personal data and must exercise utmost care in fulfilling its obligations regarding data protection.

This Agency understands that diligence must be inferred from conclusive facts, which are duly accredited and directly related to the elements that constitute the infringement, in such a way that it can be deduced that it has occurred despite all the means provided by the responsible party to prevent it. In this case, the conduct of the responding party does not have this character.

. Article 76.2.b) of the LOPDGDD: "b) The link between the activity of the offender and the performance of personal data processing."

The high link of the activity of the responding party with the performance of personal data processing, especially regarding the capture of images of customers by the surveillance systems installed in their establishments, which is carried out indiscriminately. The level of implementation of the entity and the activity it develops is considered, in which personal data of thousands of interested parties are involved. This circumstance determines a greater degree of demand and professionalism and, consequently, the responsibility of the responding entity in relation to the processing of the data.

. Article 76.2.f) of the LOPDGDD: "the impact on the rights of minors."

The present case is related to personal data concerning the claimant's daughter, who is a minor.

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****Article 83.2.d) of the GDPR:**** "d) the degree of responsibility of the data controller or the processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32."

Although the infringement only affects the complaining party, the entity ECI did not take into account the retention period of the images captured by its video surveillance system when addressing the rights of the data subjects.

Considering the circumstances presented, the assessment of the fine that should be imposed for the infringement of Article 18 of the GDPR is 70,000 euros (seventy thousand euros).

2. ****Infringement of Article 15 of the GDPR, classified under Article 83.5.b) of the same Regulation, and qualified as very serious for the purposes of prescription in Article 72.1.k) of the LOPDGDD.****
The following circumstances are deemed concurrent:

- ****Article 83.2.a) of the GDPR:**** “a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered.”

- The nature of the infringement, as the failure to address the right of access, by its content, impacts the complaining party's ability to exercise true control over their personal data.

In relation to the right of access and its configuration as a gateway to other rights, the CJEU, in its Judgment of 07/05/2009, issued in Case C-553/07, analyzing the Directive and equally valid now for the GDPR, states the following:

“51 The aforementioned right of access is indispensable for the data subject to exercise the rights provided for in Article 12, letters b) and c), of the Directive, namely, where applicable, when the processing does not comply with its provisions, to obtain from the data controller the rectification, erasure, or blocking of the data [letter b)], or to notify third parties to whom the data have been communicated of any rectification, erasure, or blocking carried out, unless this proves impossible or involves a disproportionate effort [letter c)].

52 The right of access is also a necessary condition for the data subject to exercise the right to object to the processing of their personal data, as provided for in Article 14 of the Directive, as it is for the right to seek compensation for damages suffered, as provided for in Articles 22 and 23 thereof.”

- The level of damage suffered by the data subjects, insofar as the failure to address the right of access resulted in the non-delivery of the images requested by the complaining party, which harmed their ability to defend themselves in relation to the accident that occurred at a center of the responding party.

- ****Article 83.2.b) of the GDPR:**** “b) the intent or negligence in the infringement.”

To assess this negligence, the circumstances indicated in the previous section are taken into account.

- ****Article 76.2.b) of the LOPDGDD:**** “b) The link of the infringer's activity with the processing of personal data.”

The high link of the infringer's activity with the processing of personal data has already been justified in relation to the previous infringement.

- ****Article 76.2.f) of the LOPDGDD:**** “the impact on the rights of minors.”

The present case is related to personal data concerning the daughter of the complaining party, who is a minor.

- ****Article 83.2.d) of the GDPR:**** “d) the degree of responsibility of the data controller or the processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32.”

Although the infringement only affects the complaining party, the entity ECI did not take into account the retention period of the images captured by its video surveillance system when addressing the rights of the data subjects.

Considering the circumstances presented, the assessment of the fine that should be imposed for the infringement of Article 18 of the GDPR is 70,000 euros (seventy thousand euros).

This Agency does not share the approach set forth in ECI's written allegations regarding the circumstances considered to determine the fine to be imposed:

- The circumstances relating to the nature and severity of the infringement, as well as those relating to the level of damage suffered, are not considered based on the infringing act, as ECI states in its allegations, but rather based on the effects produced.

In the terms indicated by the European Data Protection Board in its Guidelines 04/2022 on the calculation of fines under the GDPR, in its version adopted on 24/05/2023, the interest that the infringed provision seeks to protect and the extent to which the infringement prohibited the effective application of the provision and compliance with the objective it aimed to protect are taken into account.

- Negligence can be considered a factor that increases the weight attributed to an infringement, and not merely a factor that mitigates it, as the entity ECI argues. As clearly indicated in the Guidelines

mentioned in the previous paragraph, "Depending on the circumstances of the case, the supervisory authority may also attribute weight to the degree of negligence. At best, negligence could be considered neutral."

The previous sections have expressed the circumstances taken into account.

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to qualify ECI's conduct as negligent, among which does not figure its status as a large company or the level of professionalism that is presumed, although these latter circumstances do affect the assessment of the degree of recklessness.

Thus, the allegation made by ECI must be rejected, according to which the connection of the infringer's activity with the processing of personal data has been treated in determining the fine "as if they were two different aggravating factors."

On the other hand, in the opening agreement, the fine to be imposed was assessed considering the categories of personal data affected by the infringement (Article 83.2.g of the GDPR), since the personal data referred to in the proceedings (image of the claimant's daughter) has a particularly sensitive nature, as it allows for the prompt identification of the data subjects and increases the risks to their privacy. In this regard, the allegation made by ECI, according to which this risk does not apply in the present case, which is caused by the deletion of those data, is considered.

VIII

Imposition of Measures

The infringements in the matter at hand may lead to the imposition on the responsible party of the obligation to adopt appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

In such a case, this Agency may require the responsible entity to, within the period determined, adjust its actions to the personal data protection regulations, to the extent expressed in the Legal Grounds of this agreement.

In this act, the infringements committed and the facts that give rise to the violation of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments to implement them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, it is appropriate to require the entity ECI to, within a period of three months from the date of effectiveness of the final resolution concluding this procedure, establish mechanisms to ensure that requests for the exercise of rights are responded to in all cases, considering the retention period of the images, if

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this is less than one month; and to prevent, in the case of requests for the preservation and access to the images captured by their video surveillance systems, that the images referred to in these requests are deleted before the right is addressed and before the competent authorities can review, if applicable, the decisions made by the party being claimed in this regard. The aforementioned entity must inform this Agency, within the same timeframe, about the measures adopted in compliance with this resolution.

It is warned that failure to comply with a possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the

provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on EL CORTE INGLÉS, S.A., with NIF A28017895, the following fines:

- for the infringement of article 18 of the GDPR, classified in article 83.5.b) of the same Regulation, and qualified as very serious for the purposes of prescription in article 72.1.k) of the LOPDGDD, a fine of 70,000 euros (seventy thousand euros).

- for the infringement of article 15 of the GDPR, classified in article 83.5.b) of the same Regulation, and qualified as very serious for the purposes of prescription in article 72.1.k) of the LOPDGDD, a fine of 70,000 euros (seventy thousand euros).

SECOND: TO ORDER EL CORTE INGLÉS, S.A., with NIF A28017895, that pursuant to article 58.2.d) of the GDPR, within three months from the date this resolution becomes final and enforceable, to prove that it has adopted the necessary measures to align its actions with the personal data protection regulations, to the extent expressed in the Legal Basis VIII of this resolution; and to prove to this Agency, within the same timeframe, the measures adopted.

THIRD: TO NOTIFY this resolution to EL CORTE INGLÉS, S.A.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that it must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code:

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XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, it will proceed to collection in the executive period.

Upon receiving the notification and once it is executive, if the date of executivity falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party

expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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